

25SMCV06500 25SMCV06500

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 25SMCV06500 Hearing Date: September 28, 2026 Dept: 205

HEARING DATE: September 28, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: Seventures LLC v. Solevy Co, LLC

CASE NUMBER: 25SMCV06500

COMP. FILED: December 15, 2025

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: Seventures LLC dba Talsen Chemicals

RESPONDING PARTY: Solevy Co, LLC dba 6 Degrees Collective

BACKGROUND

This is a breach of contract and common counts case. Plaintiff Seventures LLC dba Talsen Chemicals sells various compounds that are used in the manufacturing of cosmetics, including hyaluronic acid powder. Between May 28, 2025 and August 5, 2025, Defendant Solevy Co., LLC dba 6 Degrees Collective placed multiple orders for hyaluronic acid powder.

Pursuant to the purchase orders, Plaintiff supplied Defendant with hyaluronic acid. Defendant has not paid for the orders, which total \$31,736.00.

Plaintiff filed a complaint for breach of contract and common counts for the balance due under the terms of the purchase orders. The complaint seeks the principal sum of \$31,736.00, plus interest, costs and attorneys' fees. Defendant did not respond.

Plaintiff filed a proof of service showing that Defendant was served via an employee at a UPS store located at 2934 1/2 N Beverly Glen Cir PMB 274 Los Angeles, CA 90077-1745.

On June 16, 2026, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendant. This hearing is on Plaintiff's request for entry of default judgment.

REQUEST FOR RELIEF

Plaintiff seeks \$34,097.53 which includes (1) 31,736 in damages, (2) \$1,755.38 in interest, and (3) \$606.15 in costs.

ANALYSIS

Plaintiff served Defendant via a commercial mail receiving agency ("CMRA"). But Plaintiff's service did not comply with the rules for such service.

Code of Civil Procedure section 415.20 authorizes substitute service in lieu of personal delivery. Subdivision (a) applies to business entities; subdivision (b) applies to individuals. A corporation may be served by personally delivering a summons and complaint to the agent for service of process (Code Civ. Proc. § 416.10(a)), or to the corporate officers, managers, and employees identified in Code of Civil Procedure section 416.10(b).

In lieu of personal delivery, Code of Civil Procedure section 415.20(c) permits substituted service on a CMRA: "Notwithstanding subdivision (b), if the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code."

Pursuant to Business and Professions Code section 17538.5(d)(1), "[u]pon receipt of any process for any mailbox service customer, the CMRA owner or operator shall (A) within 48 hours after receipt of any process, place a copy of the documents or a notice that the documents were received into the customer's mailbox or other place where the customer usually receives his or her mail, unless the mail receiving service for the customer was previously terminated, and (B) within five days after receipt, send all documents by first-class mail, to the last known home or personal address of the mail receiving service customer. The CMRA shall obtain a certificate of mailing in connection with the mailing of the documents. Service of process upon the mail receiving service customer shall then be deemed perfected 10 days after the date of mailing."

Here, it is not clear if the UPS address was the "only address reasonably known for the person to be served." The invoices submitted by Plaintiff show that Defendant's business address is 28918 Hancock Parkway, Valencia, CA 91355. It is not clear if Defendant's agent for service of process could have been served at the invoice address.

Notwithstanding, Plaintiff has not complied with the other requirements for service on a CMRA. Section 17538.5 requires the CMRA to send the summons and complaint to the customer by first class mail, to the last known home or personal address of the CMRA customer. There is no evidence that the CRMA mailed anything to Defendant, or that it did so within five days. Additionally, section 17538.5 requires the CMRA to obtain a certificate of mailing. Again, there is no evidence that the CMRA did so here.

Plaintiff submits the declaration of its process server which states that the summons and complaint were mailed to the same service address, i.e., the UPS store. That does not comply with section 17538.5 which requires that the CMRA (not the process server) mail the summons and complaint to the customer's last known address (which is not the UPS store).

Accordingly, because service on Defendant is defective, the Court has no jurisdiction over Defendant and cannot enter default judgment against it.

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff's Request for Default Judgment is DENIED. The Order to Show Cause re Entry of Default Judgment is continued to February 25, 2027 at 8:30 a.m.